

Calendar Line 3

Case Name: *Wendy Warren vs Roygbiv Real Estate Development, LLC*

Case Number: 24CV428897

The full nature and quality of the meet and confer efforts by both parties is unclear and unsatisfactory from the record before the Court. The hearing on the motions to compel and their attendant requests for sanctions is CONTINUED to April 4, 2025 at 9 a.m. in Department 13. The parties are ORDERED to (1) further meet and confer, either in person, by phone, or video conference, for each of the items in dispute in all five motions to compel, and (2) file a JOINT statement no later than March 26, 2025, identifying the discovery items in those motions *that remain in dispute*, if any, and the *specific* legal and factual reasons why they should be compelled or not compelled. Boilerplate or cut-and-paste arguments are discouraged.

All counsel attest to being seasoned and professional. Accepting this premise, the Court believes that further efforts could bear fruit so as to avoid the necessity for a formal order on each issue currently presented regarding the four methods of discovery and the five efforts to compel. The parties are well aware that "[a] reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) Setting aside the parties' perspectives on each other's efforts up to this point, they must abide by this approach moving forward.

Reviewing the entire correspondence between the parties, to the extent it is provided here, it is apparent to the Court that while Mr. Borger's July 24, 2024 "meet and confer" letter contained its share of charged words and phrases directed at Defendant (e.g., "woefully deficient and improper," "entirely intended to obfuscate discovery," "sanctionable," "gamesmanship"), it was Mr. Borger's email of July 25, 2024 at 6:45 a.m. to Legal Assistant Warkenin that set a tone contrary to the spirit of reasonable, dispassionate, deliberate, and professional effort toward informal resolution. Mr. Borger's communication retains this tone throughout.

The quality of Defendant's subsequent responses and behavior, in specific and in total, is open to debate, but the Court does not fault Defendant for describing Plaintiff's counsel's email, which was addressed to and directed at Legal Assistant Warkentin, as "hostile, rude, and unprofessional." And the Court is not persuaded that this characterization would be inaccurate even if the email had been for attorney's eyes only. The Court also notes that Attorney Covello's initial declaration in support of the motion to compel makes no mention of unpleasant or unprofessional behavior on the part of Defendant's counsel during the August 9, 2024 phone call. (Covello Decl., September 30, 2024, ¶ 12.) These accusations are made for the first time in Plaintiff's reply. (Covello Decl., February 28, 2025, ¶¶ 6-9.)

Some progress was made by Ms. Covello and Ms. Welling during that August 9, 2024 session, and immediately after, both parties claimed to have had an interest in additional conversations and efforts to reach agreements. Circumstances that Defendant claimed were complications at that time no longer exist (i.e., the Verified First Amended Complaint is filed, and Defendant has Answered). The Court acknowledges Plaintiff's desire to move the case forward. This desire is likely informed, at least in part, by the many alleged extensions given

by Plaintiff from the expected close of escrow in 2020 to the filing of this lawsuit in 2024. While there are several sets of discovery to address, this does appear, as Plaintiff states, to be “a fairly straightforward breach of contract for purchase of real estate case” with only three causes of action. (Reply, at p. 3.) With good faith and renewed diligence, the parties should be able to complete this discovery rapidly and without Court intervention.

The parties have already been directed to meet and confer regarding the Trial Setting Conference currently scheduled for March 26, 2025. They will now have their discovery dispute narrowed or eliminated by that same date. Any lingering issues will be resolved by the Court on April 4, 2025. Based on current projections, the Court is setting trials no sooner than November 2025. Continuing this motion under the conditions stated should not impact a trial date in the regular course.

The Court will consider the parties’ compliance with this order as part of the totality of circumstances in determining the propriety of sanctions at any further hearing on these motions.

So Ordered.

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